

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.2068	0.1574	0.0175	0.2558	0.1824
Trial Fee-Shifting	0.1919	0.1475	0.0142	0.2558	0.1373

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.1887	0.1478	0.0046	0.2558	0.1250
Trial Fee-Shifting	0.2040	0.1332	0.0076	0.2575	0.1260